

**Court No. - 3**

**Case :-** WRIT - C No. - 872 of 2022

**Petitioner :-** Amrit Lal

**Respondent :-** State Of U.P. And 4 Others

**Counsel for Petitioner :-** Babu Lal Ram

**Counsel for Respondent :-** C.S.C., Udit Chandra

**Hon'ble Surya Prakash Kesarwani, J.**

**Hon'ble Ashutosh Srivastava, J.**

Heard Shri Babu Lal Ram, learned counsel for the petitioner, learned Standing Counsel for respondent nos. 1 to 3 and Shri Udhir Chandra, learned counsel for respondent nos. 4 to 5.

This writ petition has been filed praying for the following reliefs:

*"I. Issue a writ, order or direction in the nature of certiorari quashing the Recovery Citation dated 16.3.2020 issued by the respondent no. 3.*

*II. Issue a writ, order or direction in the nature of mandamus directing the respondents not to recover Rs.4,94,949 from the petitioner in pursuance of recovery citation dated 16.3.2020 issued by the respondent no. 3."*

Learned counsel for the respondent nos. 4 and 5 states that petitioner that the petitioner may submit his objection before respondent no. 4, which shall be considered and decided by the respondent no.4 in accordance with law by a speaking and reasoned order, after affording due opportunity of hearing to the petitioner.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, the writ petition is ***disposed of*** giving liberty to the petitioner to file an objection before the respondent no.4 under Para 6.8 of the U.P. Electricity Supply Code, 2005, within four weeks from today along with certified copy of this order. In the event such an objection is filed within the stipulated period, the same shall be decided by the respondent no.4 within next four weeks in accordance with law by a reasoned and speaking order after affording reasonable opportunity of hearing to the petitioner.

**Order Date :-** 7.5.2022

Ravi Prakash